

Badami Devi v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 7 October 2013 · WRIT - C No. 52182 of 2013 · **Writ disposed; petitioner relegated to clause 6.5 before EE.**

HEADNOTE

A consumer challenging an electricity bill as wrongly issued, on the plea of non-use of electricity, was left to submit a complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer for decision in accordance with law. The writ petition was disposed of on that observation without examining the bill on merits.

FACTUAL SUMMARY

Badami Devi petitioned the Allahabad High Court against an electricity bill dated 29 June 2013. The petitioner claimed not to be using electricity and that the bill had been wrongly issued. Counsel for respondents 2 and 3 obtained time for instructions; the writ was listed as fresh on 24 September 2013 and again on 4 October 2013. On 7 October 2013 the Division Bench heard the petitioner, counsel for those respondents, and the Standing Counsel.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing complaint to Executive Engineer

HOLDING

Where a consumer is aggrieved by an electricity bill alleged to have been wrongly issued, it is open to the consumer to submit a complaint under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, who may consider and decide the objection in accordance with law; the writ petition was disposed of on that observation. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY BILL DATED 29.6.2013 WAS WRONGLY ISSUED BECAUSE THE PETITIONER WAS NOT USING ELECTRICITY

left to the Executive Engineer on a clause 6.5 complaint ¶ 1